# [STAMP PAPER / E-STAMP: Non-judicial stamp paper or e-stamp certificate of the value required by the [STATE] Stamp Act. E-Stamp Certificate No./UIN: [UIN] Date: [DATE] Amount: Rs. [AMOUNT]]

## AGREEMENT TO SELL

This Agreement to Sell is made at [PLACE] on this [DAY] day of [MONTH] [YEAR]

BETWEEN [SELLER NAME], S/o / D/o / W/o [NAME], aged about [AGE] years, resident of [ADDRESS], PAN [PAN] (hereinafter the "VENDOR") AND [BUYER NAME], S/o / D/o / W/o [NAME], aged about [AGE] years, resident of [ADDRESS], PAN [PAN] (hereinafter the "PURCHASER").

WHEREAS the Vendor is the absolute owner of the property described in the Schedule (the "Property") and has a clear and marketable title, free from all encumbrances, charges, liens and pending litigation, and has agreed to sell, and the Purchaser has agreed to purchase, the Property.

1. The total sale consideration is Rs. [AMOUNT] (Rupees [AMOUNT IN WORDS] only). 2. The Purchaser has paid Rs. [ADVANCE] as earnest/advance money by [MODE] no. [NO] dated [DATE], the receipt of which the Vendor hereby acknowledges. 3. The balance consideration of Rs. [BALANCE] shall be paid on or before [DATE], at the time of execution and registration of the Sale Deed. 4. The Vendor shall execute and register the Sale Deed in favour of the Purchaser on or before [DATE]. Time is of the essence of this Agreement. 5. The Vendor shall hand over title documents, encumbrance certificate, original deeds and obtain all NOCs and approvals (society/builder/authority/bank) required, and the Purchaser may conduct a title search and legal due diligence. 6. The Vendor warrants a clear and marketable title; there is no litigation, court stay, mortgage or other encumbrance on the Property. 7. Possession of the Property shall be delivered at [TIME OF SALE DEED / AS AGREED]. [If possession is given now, the parties acknowledge section 53A of the Transfer of Property Act, 1882 and the applicable State stamp duty.] 8. If the Purchaser defaults, the advance shall be forfeited; if the Vendor defaults, the Vendor shall refund the advance with [DOUBLE/INTEREST] and the Purchaser may seek specific performance or compensation as damages. 9. Either party may terminate this Agreement for material breach after [DAYS] days' written notice; on cancellation the advance shall be dealt with as per clause 8. 10. All disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, and courts at [PLACE] shall have jurisdiction. This Agreement is governed by the laws of India. 11. Stamp duty on this Agreement has been paid as per the State Stamp Act, and the Agreement shall be registered with the Sub-Registrar under the Registration Act, 1908 where required.

SCHEDULE OF PROPERTY: [PLOT/FLAT NO., SURVEY/CTS NO., ADDRESS, AREA, BOUNDARIES NORTH/SOUTH/EAST/WEST]

IN WITNESS WHEREOF the parties have signed this Agreement in the presence of the witnesses: VENDOR: [SIGNATURE] PURCHASER: [SIGNATURE] WITNESS 1: [NAME, ADDRESS, SIGNATURE] WITNESS 2: [NAME, ADDRESS, SIGNATURE]